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#8 - VARUZHAN SHAGINYAN, et al. vs IN-N-OUT BURGERS

MOTION FOR SUMMARY JUDGMENT

(6320; 8356)

Defendant In-N-Out

Burgers filed separate motions for summary judgment, or alternatively summary adjudication, against Plaintiff Varuzhan Shaginyan and against Plaintiffs Ani Mnatsakayan and David Shaginyan.

Because the motions

arise from the same incident and present substantially overlapping questions of duty, breach, and causation, the Court addresses them together but decides each motion independently.

Relevant Background

Plaintiffs allege

general negligence and premises liability arising from an August 5, 2023 assault and robbery at Defendant's restaurant located at 119 South Brand Boulevard in Glendale. Defendant

contends that the confrontation began on a public sidewalk, continued into the restaurant, and did not involve any employee before the attack.

Defendant's incident

report allegedly records that approximately 40 to 50 young males entered the restaurant, took beverages without paying, and then gathered at the storefront for approximately 10 to 15 minutes. (Stroman

Decl. (6320), ¶ 9, Exh. 7.) Plaintiffs

further offer evidence that members of the group threw lit explosives or firecrackers at the family, encircled them, and pursued them into the restaurant within approximately two seconds. (Stroman Decl. (6320), Exh. 1, 39:19-40:21; Stroman Decl. (6320), Exh. 2, 16:1-17:25.)

The assault and robbery of Varuzhan occurred inside the restaurant. Ani and David were allegedly caught between the counter and the melee; Ani witnessed the assault, and David remained strapped into his stroller while screaming. (Opp. (6320), p. 13.) Page 13 of Plaintiffs Ani and David's opposition cite to AMF 20 through 31.

The store manager Justin Urias called 911 as the fight began, intervened between the attackers and Ani and David, and directed members of the group outside. (Stroman Decl. (6320), Exh. 7; Stroman Decl. (6320), Exh. 3, Responses to RFA Nos. 17-18.) Police officers allegedly arrived within approximately one to three minutes. (Stroman Decl. (6320), Exh. 7.)

Evidentiary Rulings

Varuzhan Shaginyan Motion (8356)

Varuzhan's Objection

Nos. 1 and 2 to John Mark Jennings's characterization of the silent surveillance recording are SUSTAINED. Jennings may authenticate what the recording visually depicts, but his assertions that Varuzhan was "arguing" and thereby "caus[ed]" members of the group to enter constitute unsupported interpretations of a silent recording by a declarant who did not witness the incident.

The Court does not rule on Objection No. 3 because the ownership of the sidewalk is immaterial to the disposition.

The Court does not rule on Objection No. 4 because Plaintiff lodged complete copies of the surveillance recordings.

Objections not material to the disposition remain preserved. (Code Civ. Proc., § 437c.)

Ani Mnatsakayan and David Shaginyan Motion

The Court does not rule on Ani and David's objections because the challenged sidewalk statement and Dropbox reference are not material to the disposition. Complete copies of the surveillance recordings were separately lodged with the Court.

Tentative Ruling

Both motions for summary judgment are DENIED. Defendant's alternative requests for summary adjudication are also DENIED.

Legal Authority

"The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 473c subd. (a)(1).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Id., at § 437c, subd. (c).)

A defendant moving for summary judgment bears an initial burden of showing that the plaintiff's causes of action have no merit, and the defendant meets this burden by making a prima facie evidentiary showing that one or more elements of each cause of action cannot be established, or there is a complete defense to each cause of action. (Aguilar, supra, 25 Cal.4th at pp. 849-851; Code Civ. Proc., § 437c, subd. (p)(2).) If the defendant meets its initial burden, the burden shifts to the plaintiff to produce evidence of a triable issue of material fact concerning the challenged element or defense. (Aguilar, supra, 25 Cal.4th at pp. 849-851; Code Civ. Proc., § 437c, subd. (p)(2).) "There is a triable issue of material fact if,

and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar, supra, 25 Cal.4th at p. 850.) Throughout the motion, however, the moving party bears an overall burden of persuasion that there is no triable issue of material fact and that the moving party is entitled to judgment as a matter of law. (Id., at p. 850 & fn. 11.)

Duty and Breach

A defendant may owe an affirmative duty to protect another from the conduct of third parties if he or she has a “special relationship” with the other person. (See 6 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, §§ 858–866, pp. 220–233; 2 Dobbs, The Law of Torts (2001) §§ 317, 322–332 (Dobbs on Torts).) Courts have found such a special relationship in cases involving the relationship between business proprietors such as shopping centers, restaurants, and bars, and their tenants, patrons, or invitees.

(Delgado v. Trax Bar & Grill (2005) 36 Cal.4th 224, 235.) However, the Supreme Court in Delgado also found that proprietor had no duty to provide security guards or take other burdensome measures to protect a patron, who was injured in group assault in bar’s parking lot, where there was no evidence of heightened foreseeability in the form of prior similar incidents or other indications of reasonably foreseeable risk of a violent criminal assault on bar’s premises. (Id., at pp. 244-245.) The court further clarified that the absence of heightened foreseeability in the case merely signified that defendant owed no special-relationship-based duty to provide guards or undertake other similarly burdensome preventative measures; it did not signify that defendant owed no other special-relationship-based duty to plaintiff—such as a duty to respond to events unfolding in its presence by undertaking reasonable, relatively simple, and minimally burdensome measures. (Id., at p. 245.)

A different analysis

applies to reasonable, minimally burdensome responses to imminent or ongoing assaultive conduct.

[A]s we explained in *Delgado*, even if a proprietor, such as the bar in that case, has no special-relationship-based duty to provide security guards or other similarly burdensome measures designed to prevent future criminal conduct (which measures are required only upon a showing of “heightened foreseeability”), such a proprietor nevertheless owes a special-relationship-based duty to undertake reasonable and minimally burdensome measures to assist customers or invitees who face danger from imminent or ongoing criminal assaultive conduct occurring upon the premises. In this regard, we noted in *Delgado* that restaurant proprietors owe a special-relationship-based duty to provide “ ‘assistance [to] their customers who become ill or need medical attention and that they are liable if they fail to act’ ” (*Delgado*, supra, 36 Cal.4th at p. 241, 30 Cal.Rptr.3d 145, 113 P.3d 1159, and, more to the point, with respect to imminent or ongoing criminal assaultive conduct occurring in the proprietor’s presence, such proprietors have a duty to warn or “take other reasonable and appropriate measures to protect patrons or invitees....” (*Id.*, at p. 241, 30 Cal.Rptr.3d 145, 113 P.3d 1159, paraphrasing *Kentucky Fried Chicken*, supra, 14 Cal.4th 814, 823, 59 Cal.Rptr.2d 756, 927 P.2d 1260; see also *Taylor*, supra, 65 Cal.2d 114, 121, 123–125, 52 Cal.Rptr. 561, 416 P.2d 793; *Johnston v. Fontana* (La.Ct.App.1992) 610 So.2d 1119, 1121–1122 (*Johnston*) [restaurant proprietor whose customer threatened to attack another customer had duty to “call[] the police for assistance”].)

(*Morris v. De La Torre* (2005) 36 Cal.4th 260, 270.) Calling 911 is ordinarily such a minimally burdensome measure, although the reasonableness and timing of the response depend upon the circumstances. (*Id.*, at p. 277.)

Defendant’s evidence

establishes that Plaintiffs did not speak with an employee before the attack. (UMF 8 (6320); UMF 7 (8356)). Defendant’s argument that no employee was involved in the altercation does not resolve Plaintiffs’ pleaded failure-to-protect theory. (Reply (6320), p. 9; Reply (8356), p. 8.) Defendant acknowledges that its manager called 911 and intervened and that other employees attempted to assist Plaintiffs. (Reply (6320), p. 4; Reply (8356), p. 4.) This evidence permits competing inferences concerning when the danger became apparent and whether Defendant’s response was timely. Plaintiffs identify the group’s prior conduct inside the restaurant, its gathering at the storefront, the alleged explosives and encirclement near the entrance, and the group’s pursuit of the family inside. Defendant

characterizes the same sequence as a spontaneous confrontation receiving an immediate response once violence began.

These conflicting accounts cannot be resolved by weighing credibility or choosing among reasonable inferences on summary judgment. (See *California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.) Defendant does not establish as a matter of law that it owed no duty to take minimally burdensome measures or that its response necessarily satisfied that duty.

MSJ against Plaintiff Varuzhan Shaginyan (8356)

A Triable Issue Remains as to Breach of Duty

Defendant relies principally on evidence that Varuzhan argued with members of the group on a public sidewalk, entered the restaurant while the exchange continued, and did not speak with an employee before or after the fight. Defendant argues that these facts establish that no employee was involved and therefore negate breach.

However, Plaintiffs' claims rest on alleged omissions in protecting patrons, not on employee participation in the assault. Whether Varuzhan personally requested assistance is not dispositive if employees otherwise perceived circumstances requiring a reasonable response.

Defendant's separate statement does not establish what employees could observe, when any danger became apparent, or whether an earlier warning or request for assistance was reasonably available. Plaintiff's separate statement also identifies evidence that members of the group were already inside the restaurant and that employees only intervened once the assault began. (DMF 5 (8356).)

While a jury may very well find that Defendant did not breach a duty, for purposes of summary judgment, and as required by section 437c, Defendant has not established as a matter of law that Varuzhan cannot prove breach.

A Triable Issues Remains as to Causation

The absence of employee participation in the assault does not establish the absence of a causal connection between an alleged failure to protect and the resulting harm. Defendant's evidence shows that Varuzhan was assaulted inside the restaurant but does not address whether a timely protective response could have prevented or reduced that harm.

Plaintiff Varuzhan offers evidence that the group remained at the storefront for approximately 10 to 15 minutes and that officers arrived within one to three minutes after the eventual 911 call. (DMF 5 (8356); AMF 28 (8356).) That evidence does not conclusively establish causation, but Defendant's showing does not eliminate a reasonable inference that an earlier response could have prevented or shortened the assault.

The case cited in Defendant's motion (8356), *Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, does not compel a different result. There, the plaintiff lacked evidence connecting the particular assault to any identified security lapse. (*Id.*, at pp. 779-780.) Here, the record identifies the attackers, the relevant sequence, the duration of their presence, the location of the assault, and the timing of Defendant's and law enforcement's responses. These facts would likely support a verdict in favor of Defendant; however, by statute, that determination must be made by the trier of fact.

The motion for summary judgment against Varuzhan is therefore denied.

MSJ against Ani Mnatsakayan and David Shaginyan (6320)

Lack of Physical Impact Does Not Resolve the Motion

Defendant argues that Ani and David cannot establish causation because neither was struck during the altercation. The absence of a blow does not categorically preclude recovery for serious emotional distress arising from negligence. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1079 [physical injury is not a prerequisite

for recovering damages for serious emotional distress].) The traditional requirements of duty, breach, causation, and damages remain applicable. (Id., at p. 1072.) Physical injury or impact is not itself an indispensable element.

Defendant's own

facts place Ani and David in the middle of the group when the fighting began. The opposition identifies evidence from its separate statement that Ani was caught in the melee, witnessed her husband being beaten, lost property, and later received treatment for anxiety. It also identifies evidence that an explosive landed on David's stroller, that he was carried through the melee while restrained in the stroller, and that he was screaming.

Therefore, Defendant's

showing that neither Plaintiff was struck does not establish that they suffered no compensable harm. Rather, a jury will have to determine if any conduct by Defendant contributed to the harm caused by the mob attack on Plaintiffs.

Duty, Breach, and Causation Remain Unresolved

Defendant's separate

statement addresses where the confrontation began, the absence of direct employee communication, whether Ani and David were hit, and Ani's movement away from the fight. It does not establish what employees observed before the family entered, when the danger became apparent, or whether the timing of Defendant's response affected the harm allegedly suffered by Ani and David.

The store manager's

decision to intervene specifically to protect the woman and child supports the conclusion that they faced a danger independent of whether a blow landed. Whether a reasonable response should (or could) have occurred sooner, and whether any such action was a substantial factor in their claimed harm, cannot be resolved by this Court. Accordingly, Defendant's motion for summary judgment against them is denied.

Summary Adjudication in the Alternative

Defendant's

alternative requests do not identify specific causes of action, claims for damages, affirmative defenses, or issues of duty to be completely disposed of. Moreover, the same unresolved duty, breach, and causation issues apply to both causes of action. The alternative requests for summary

adjudication are denied.